

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

11. AMANDA ALESSANDRO V. JEREMY ALESSANDRO

PFL20200677

On March 24, 2026, Respondent filed two FL-300 Request for Order (RFO) forms; one seeking joinder and the other seeking attorney's fees. He filed his Income and Expense Declaration concurrently therewith. There is a Proof of Service for the attorney's fees RFO showing it was served on May 27th.

Petitioner filed her Income and Expense Declaration and her Responsive Declaration to Request for Order on April 30th. There is no Proof of Service for these documents.

On May 27, 2026, Respondent filed and served a Notice of Motion and Declaration for Joinder. Proof of Service for the RFO regarding joinder shows the potentially joined parties were served on May 27, 2026.

Respondent attached copies of Petitioner's Income and Expense Declaration and her Responsive Declaration to Request for Order to his Declaration for Joinder therefore the court finds that he has actual knowledge of the contents thereof and he has effectively waived any defect in service.

On June 4th, Petitioner filed and served her Responsive Declaration to Motion for Joinder.

On June 11th, Respondent filed and served two MC-030 declarations.

Parties appeared for the hearing on June 18, 2026. The parties agreed that the Krejci's were served, however, service was late. To cure the defect in service the parties agreed to have the issue of joinder heard on July 30, 2026. The Motion to Quash was withdrawn. Parties argued the issue of attorney's fees and sanctions, which the court went on to deny.

Potentially Joined Parties filed a Memorandum of Points and Authorities on July 2, 2026, regarding the Motion to Quash. The court is unable to locate a Proof of Service which corresponds to this document.

Respondent is requesting the court join Thomas Krejci and Kathy B. Krejci, individually and as trustees of the Krejci Family Trust dated September 14, 2017.

Regarding the request for joinder, "[t]he court may order that a person be joined as a party to the proceeding if the court finds that it would be appropriate to determine the

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particular issue in the proceeding and that the person to be joined as a party is either indispensable for the court to make an order about that issue or is necessary to the enforcement of any judgment rendered on that issue.” Cal. Rule Ct. 5.24(e)(2). Importantly, joinder of a third-party owner is permissive, not mandatory, for purposes of adjudicating the spouses’ rights amongst themselves. See Long v. Long, 88 Cal. App. 2d 544 (1948).

Respondent relies on the doctrine of a constructive trust which is created where one party pays the purchase price for property but title is taken in another’s name. However, he does not provide any documentation that the parties paid the purchase price, including the down payment or taking out the mortgage in their names. Instead, he admits that Thomas Krejci and Kathy B. Krejci actually purchased and owned the property. Petitioner and Respondent simply resided there in exchange for making monthly payments which went toward the mortgage, tax, and insurance. Respondent argues that the understanding between the parties was that the home would eventually be transferred to the couple. To support this claim he cites a document “previously filed as Exhibit B to Respondent’s Supplemental Declaration,” though he does not provide the court clarity as to which supplemental declaration.

Petitioner opposes the joinder asserting that the third parties are not indispensable to the court nor is it necessary to the enforcement of the judgment.

The court has read and considered the filings as outlined above. The court denies the request for joinder, as the parties sought to be joined are not indispensable and are not necessary to enforce the judgment. Respondent has appropriate remedies available through the civil court.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT DENIES THE REQUEST FOR JOINDER, AS THE PARTIES SOUGHT TO BE JOINED ARE NOT INDISPENSABLE AND ARE NOT NECESSARY TO ENFORCE THE JUDGMENT. RESPONDENT HAS APPROPRIATE REMEDIES AVAILABLE THROUGH THE CIVIL COURT. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS

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ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.